

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 728

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-1001, IDAHO CODE, TO REVISE DEFINITIONS; AMENDING SECTION 33-512D, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-515, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-911, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-915, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-1201, IDAHO CODE, TO REVISE PROVISIONS REGARDING REQUIRED CERTIFICATES; AMENDING SECTION 33-1201A, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 33-1204, IDAHO CODE, TO REVISE PROVISIONS REGARDING LIFETIME INSTRUCTIONAL AND LIFETIME ADMINISTRATOR CERTIFICATES; AMENDING SECTION 33-1636, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-1001, Idaho Code, be, and the same is hereby amended to read as follows:

33-1001. DEFINITIONS. As used in this chapter:

(1) "Administrative schools" means and applies to all elementary schools and kindergartens within a district that are situated ten (10) miles or less from both the other elementary schools and the principal administrative office of the district and all secondary schools within a district that are situated fifteen (15) miles or less from other secondary schools of the district.

(2) "Administrative staff" means those who ~~hold an administrator certificate and are employed as a superintendent, an elementary or secondary school principal, or are assigned administrative duties over and above those commonly assigned to teachers.:~~

(a) Hold an administrator certificate and are employed as a superintendent, a deputy superintendent, an elementary or secondary school principal or vice principal, a director of special education, or a public charter school administrator as their primary employment;

(b) Hold an instructional certificate or teacher leader endorsement and serve in a mentor or leadership position for individuals who hold an Idaho certificate issued under section 33-1201, Idaho Code; or

(c) Are assigned administrative duties over and above those commonly assigned to teachers.

(3) "At-risk student" means a student in grades 6 through 12 who:

(a) Meets at least three (3) of the following criteria:

(i) Has repeated at least one (1) grade;

(ii) Has absenteeism greater than ten percent (10%) during the preceding semester;

- (iii) Has an overall grade point average less than 1.5 on a 4.0 scale prior to enrolling in an alternative secondary program;
- (iv) Has failed one (1) or more academic subjects in the past year;
- (v) Is below proficient, based on local criteria, standardized tests, or both;
- (vi) Is two (2) or more credits per year behind the rate required to graduate or for grade promotion; or
- (vii) Has attended three (3) or more schools within the previous two (2) years, not including dual enrollment; or

(b) Meets any of the following criteria:

- (i) Has documented substance abuse or a pattern of substance abuse;
- (ii) Is pregnant or a parent;
- (iii) Is an emancipated youth or unaccompanied youth;
- (iv) Is a previous dropout;
- (v) Has a serious personal, emotional, or medical issue or issues;
- (vi) Has a court or agency referral; or
- (vii) Demonstrates behavior detrimental to the student's academic progress.

(4) "Average daily attendance" or "pupils in average daily attendance" means the aggregate number of days enrolled students are present, divided by the number of days of school in the reporting period; provided, however, that students for whom no Idaho school district is a home district shall not be considered in such computation.

(5) "Career ladder" means the compensation table used for determining the allocations districts receive for instructional staff and pupil service staff based on specific performance criteria and is made up of a residency compensation rung ~~and~~, a professional compensation rung, and an advanced professional compensation rung.

(6) "Child with a disability" means a child evaluated as having an intellectual disability, a hearing loss including deafness, a speech or language impairment, a visual impairment including blindness, an emotional behavioral disorder, an orthopedic impairment, autism, a traumatic brain injury, another health impairment, a specific learning disability, deaf-blindness, or multiple disabilities and who, by reason thereof, needs special education and related services.

(7) "Classified staff" means those who are employed in positions that are not administrative staff, instructional staff, or pupil service staff. Classified staff are not required to have certification as provided in section 33-1201, Idaho Code.

~~(7)~~ (8) "Compensation rung" means the rung on the career ladder that corresponds with the compensation level performance criteria.

~~(8)~~ (9) "Economically disadvantaged student" means a student who:

(a) Is eligible for a free or reduced-price lunch under the Richard B. Russell national school lunch act, 42 U.S.C. 1751 et seq., excluding students who are eligible only through a school's community eligibility program;

(b) Resides with a family receiving assistance under the program of block grants to states for temporary assistance for needy families

(TANF) established under part A of title IV of the social security act, 42 U.S.C. 601 et seq.;

(c) Is eligible to receive medical assistance under the medicaid program under title XIX of the social security act, 42 U.S.C. 1396 et seq.; or

(d) Is considered homeless for purposes of the federal McKinney-Vento homeless assistance act, 42 U.S.C. 11301 et seq.

~~(9)~~ (10) "Elementary grades" or "elementary average daily attendance" means and applies to students enrolled in grades 1 through 6, inclusive, or any combination thereof.

~~(10)~~ (11) "Elementary schools" are schools that serve grades 1 through 6, inclusive, or any combination thereof.

~~(11)~~ (12) "Elementary/secondary schools" are schools that serve grades 1 through 12, inclusive, or any combination thereof.

~~(12)~~ (13) "English language learner" or "ELL" means a student who does not score proficient on the English language development assessment established by rule of the state board of education.

~~(13)~~ (14) "Gifted and talented" shall have the same meaning as provided in section 33-2001(4), Idaho Code.

~~(14)~~ (15) "Homebound student" means any student who would normally and regularly attend school but is confined to home or hospital because of an illness or accident for a period of ten (10) or more consecutive days.

~~(15)~~ (16) "Instructional staff" means those who hold an Idaho certificate issued under section 33-1201, Idaho Code, and ~~who are either involved in whose primary employment involves the direct instruction of a student or group of students or who serve in a mentor or teacher leader position for individuals who hold an Idaho certificate issued under section 33-1201, Idaho Code.~~

~~(16)~~ (17) "Kindergarten" or "kindergarten average daily attendance" means and applies to all students enrolled in a school year, less than a school year, or summer kindergarten program.

~~(17)~~ (18) "Local salary schedule" means a compensation table adopted by a school district or public charter school, which table is used for determining moneys to be distributed for instructional staff and pupil service staff salaries. Minimum compensation provided under a local salary schedule shall be at least equal to the minimum amounts established pursuant to section 33-1004E, Idaho Code.

~~(18)~~ (19) "Measurable student achievement" means the measurement of student academic achievement or growth within a given interval of instruction for those students who have been enrolled in and attended eighty percent (80%) of the interval of instruction. Measures and targets shall be chosen at the school level in collaboration with the staff member impacted by the measures and applicable district staff and approved by the school board. Measures and targets must also align with the performance measures and benchmarks in the continuous improvement plan described in section 33-320, Idaho Code. The most effective measures and targets are those generated as close to the actual work as possible. Targets may be based on grade- or department-level achievement or growth goals that create collaboration within groups. Individual measurable student achievement targets and the percentage of students meeting individual targets must be reported annually to the

state. Assessment tools that may be used for measuring student achievement and growth include:

- (a) Idaho standards achievement test (ISAT), including interim ISAT assessments;
- (b) Student learning objectives;
- (c) Teacher-constructed assessments of student growth;
- (d) Pre- and post-tests, including district-adopted tests;
- (e) Performance-based assessments;
- (f) Idaho reading indicator, which will be one (1) of the required assessment tools for applicable staff;
- (g) College entrance exams or preliminary college entrance exams such as PSAT, SAT, PACT, and ACT;
- (h) Advanced placement exams;
- (i) Career technical exams;
- (j) Number of business or industry certificates or credentials earned by students in an approved career technical education program;
- (k) Number of students completing career technical education capstone courses; and
- (l) Number of students enrolled in career technical education courses that are part of a program that culminates with business or industry certificates or credentials.

~~(19)~~ (20) "Performance criteria" means the standards specified for instructional staff and pupil service staff to demonstrate teaching proficiency for a given compensation rung. Each element of the professional compensation rung and advanced professional compensation rung performance criteria, as identified in this section and as applicable to a staff member's position, shall be documented, reported, and subject to review for determining movement on the career ladder.

(21) "Primary employment" means the position of employment in which a person spends fifty percent (50%) or more of the person's time.

~~(20)~~ (22) (a) "Professional compensation rung performance criteria" means:

- (i) An overall rating of proficient or higher, and no components rated as unsatisfactory, on the state framework for teaching evaluation or equivalent for pupil service staff or principal or other school level administrator evaluation aligned to the state framework for teaching evaluation; and
- (ii) Demonstrating the majority of students have met measurable student achievement targets or student success indicator targets.

(b) "Advanced professional compensation rung performance criteria" means:

- (i) An overall rating of proficient or higher, no components rated as unsatisfactory or basic, and rated as distinguished overall in domain two -- classroom environment or domain three -- instruction and use of assessment on the state framework for teaching evaluation or equivalent for pupil service staff or principal or other school level administrator evaluation aligned to the state framework for teaching evaluation; and

(ii) Demonstrating seventy-five percent (75%) or more of their students have met their measurable student achievement targets or student success indicator targets.

~~(21)~~ (23) "Public school district" or "school district" or "district" means any public school district organized under the laws of this state, including specially chartered school districts.

~~(22)~~ (24) "Pupil service staff" means those ~~who provide~~ whose primary employment involves providing services to students, ~~but are not involved in~~ does not involve direct instruction of those students, and who hold a pupil personnel services certificate.

~~(23)~~ (25) "School board" means a school district board of trustees or the board of directors of a public charter school.

~~(24)~~ (26) "Secondary grades" or "secondary average daily attendance" means and applies to students enrolled in grades 7 through 12, inclusive, or any combination thereof.

~~(25)~~ (27) "Secondary schools" are schools that serve grades 7 through 12, inclusive, or any combination thereof.

~~(26)~~ (28) "Separate elementary school" means an elementary school located more than ten (10) miles on an all-weather road from both the nearest elementary school and elementary/secondary school serving like grades within the same school district and from the location of the office of the superintendent of schools of such district, or from the office of the chief administrative officer of such district if the district employs no superintendent of schools.

~~(27)~~ (29) "Separate kindergarten" means a kindergarten located more than ten (10) miles on an all-weather road from both the nearest kindergarten school within the same school district and from the location of the office of the superintendent of schools of such district, or from the office of the chief administrative officer of such district if the district employs no superintendent of schools.

~~(28)~~ (30) "Separate secondary school" means any secondary school located more than fifteen (15) miles on an all-weather road from any other secondary school and elementary/secondary school serving like grades operated by the district.

~~(29)~~ (31) "Special education" means specially designed instruction or speech/language therapy at no cost to the parent to meet the unique needs of a student who is a child with a disability, including instruction in the classroom, the home, hospitals, institutions, and other settings; instruction in physical education; speech therapy and language therapy; transition services; travel training; assistive technology services; and vocational education.

~~(30)~~ (32) "Student learning plan" means a plan that outlines a student's program of study, which should include a rigorous academic core and a related sequence of electives in academics, career technical education, or humanities aligned with the student's post-graduation goals.

~~(31)~~ (33) "Student success indicators" means measurable indicators of student achievement or growth, other than academic, within a predefined interval of time for a specified group of students. Measures and targets shall be chosen at the district or school level in collaboration with the pupil service staff member impacted by the measures and applicable district staff.

1 Individual measurable student achievement targets and the percentage of
 2 students meeting each target must be reported annually to the state. Student
 3 success indicators include:

4 (a) Quantifiable goals stated in a student's 504 plan or individualized
 5 education plan.

6 (b) Quantifiable goals stated in a student's behavior improvement
 7 plan.

8 (c) School- or district-identified measurable student objectives for a
 9 specified student group or population.

10 (d) The percentage of students who create student learning plans in
 11 grade 8 or who annually update their student learning plans thereafter.

12 (e) The percentage of students who satisfactorily complete one (1) or
 13 more advanced opportunities options as identified in section 33-4602,
 14 Idaho Code, or who earn business or industry certificates or creden-
 15 tials. This indicator shall be one (1) of the required indicators for
 16 applicable staff.

17 ~~(32)~~ (34) "Support program" means the educational support program as
 18 described in section 33-1002, Idaho Code, the transportation support pro-
 19 gram described in section 33-1006, Idaho Code, and the exceptional education
 20 support program as described in section 33-1007, Idaho Code.

21 ~~(33)~~ (35) "Support unit" means a function of average daily attendance
 22 used in the calculations to determine financial support provided to the pub-
 23 lic school districts.

24 ~~(34)~~ (36) "Teacher" means any person employed in a teaching, in-
 25 structional, supervisory, educational administrative or educational and
 26 scientific capacity the teaching or instruction of students in any school
 27 district. In case of doubt, the state board of education shall determine
 28 whether any person employed requires certification as a teacher.

29 SECTION 2. That Section 33-512D, Idaho Code, be, and the same is hereby
 30 amended to read as follows:

31 33-512D. SELF-DIRECTED LEARNER DESIGNATION. (1) A student attending
 32 public school in Idaho shall be eligible to be designated as a self-directed
 33 learner. For the purposes of this section, a "self-directed learner" means a
 34 full-time student:

35 (a) Who demonstrates mastery of content knowledge through grades, as-
 36 sessments, or mastery-based learning rubrics;

37 (b) Whose teacher or teachers designate the student as such. The
 38 teacher may consider the student's mastery of the content, academic
 39 growth, timeliness for assignments, self-motivation, ability to estab-
 40 lish goals, and reaching age-appropriate learning outcomes;

41 (c) Who, starting in grade 5, demonstrates mastery of addition and mul-
 42 tiplication for numbers 0-10, as well as related subtraction and divi-
 43 sion problems, known collectively as "math facts"; and

44 (d) Who, starting in grade 8, demonstrates an informed choice of post-
 45 secondary career and education goals by:

46 (i) Completing and updating his student learning plan as defined
 47 in section 33-1001~~(30)~~ (32), Idaho Code;

48 (ii) Supplementing his student learning plan, as applicable, with
 49 the following that further his postsecondary goals:

- 1 1. Extended learning opportunities as defined in section
- 2 33-6401, Idaho Code;
- 3 2. Courses and examinations funded in chapter 46, title 33,
- 4 Idaho Code; or
- 5 3. Any other credits or programs permitted under Idaho Code
- 6 or district policy as applicable to the student's learning
- 7 plan; and
- 8 (iii) Identifying and writing down self-determined personal life
- 9 goals, including an explanation of how attending specific classes
- 10 will lead to the fulfillment of personal life goals.
- 11 (2) Each school district or public charter school may adopt a self-di-
- 12 rected learner policy to provide processes:
- 13 (a) Through which students may seek a self-directed learner designa-
- 14 tion;
- 15 (b) By which teachers may designate a student as a self-directed
- 16 learner;
- 17 (c) To monitor and support self-directed learners;
- 18 (d) By which a student's teacher or teachers rescind the self-directed
- 19 learner designation; and
- 20 (e) As otherwise necessary for implementation.
- 21 (3) Once a student is designated a self-directed learner, the student
- 22 has the right to flexible learning. Flexible learning may be different for
- 23 each student and may include flexible attendance, attending school virtu-
- 24 ally, extended learning opportunities, and any other agreed-upon learning
- 25 inside or outside the classroom. Starting in grade 8, flexible learning
- 26 should further the student's progress toward postsecondary goals. Any flex-
- 27 ible learning permitted under this section must be agreed upon by the stu-
- 28 dent, his teacher or teachers, and the student's parents or legal guardian.
- 29 (4) In order to remain a self-directed learner, the student must meet
- 30 criteria agreed upon by him, his teacher or teachers, and his parents or le-
- 31 gal guardian. Criteria may include continued mastery of content knowledge
- 32 and skills, academic growth, progress toward postsecondary goals, or other
- 33 measures of student learning. If a student fails to meet the agreed-upon
- 34 criteria or fails to stay current on classroom assignments, and does not cure
- 35 the failure within an agreed-upon time frame, the building administrator
- 36 shall rescind the self-directed learner designation upon recommendation by
- 37 the teacher or teachers.
- 38 (5) A self-directed learner will be reported as enrolled as one (1.0)
- 39 FTE or in attendance for a full day in school for the purpose of calculat-
- 40 ing support units and public school funding. The district or charter school
- 41 will receive full funding for its self-directed learners, regardless of at-
- 42 tendance or actual hours of instruction up to one (1) full day of attendance
- 43 or one (1.0) FTE, or the remaining day or FTE if the student is shared between
- 44 two (2) or more school districts or public charter schools.
- 45 (6) Each school district or public charter school must report the num-
- 46 ber of self-directed learners to the state department of education annually.

47 SECTION 3. That Section 33-515, Idaho Code, be, and the same is hereby
 48 amended to read as follows:

1 33-515. ISSUANCE OF RENEWABLE CONTRACTS. (1) During the third full
2 year of continuous employment by the same school district, including any
3 specially chartered district, each certificated employee named in subsec-
4 tion ~~(34)~~ (24) or (36) of section 33-1001, Idaho Code, and each school nurse
5 and school librarian who has obtained a professional endorsement under
6 section 33-1201A, Idaho Code, shall be evaluated for a renewable contract
7 and shall, upon having been offered a contract for the next ensuing year,
8 and upon signing and timely returning a contract for a fourth full year, be
9 placed on a renewable contract status with said school district entitling
10 such individual to the right to automatic renewal of contract, subject to the
11 provisions included in this chapter, provided that instructional staff who
12 have not obtained a professional endorsement under section 33-1201A, Idaho
13 Code, may not be placed on a renewable contract status, provided however, if
14 the career ladder pursuant to section 33-1004B, Idaho Code, is not funded,
15 then a professional endorsement shall not be required. Additionally, any
16 individual who has not successfully completed the three (3) year nonradi-
17 tional route program while on a three (3) year interim certificate and has
18 not yet been issued a five (5) year renewable certificate may not be placed on
19 a renewable contract. Such individual will remain on a category 3 contract,
20 even after serving three (3) continuous years of employment with the same
21 school district.

22 (2) At least once annually, the performance of each renewable contract
23 certificated employee, school nurse, or school librarian shall be evaluated
24 according to criteria and procedures established by the board of trustees in
25 accordance with general guidelines approved by the state board of education.
26 Such an evaluation shall be completed no later than June 1 of each year. The
27 evaluation shall include a minimum of two (2) documented observations, one
28 (1) of which shall be completed prior to January 1 of each year.

29 (3) Any contract automatically renewed under the provisions of this
30 section may be renewed for a shorter term, longer term or the same length
31 of term as stated in the current contract and at a greater, lesser or equal
32 salary as that stated in the current contract. Absent the board's applica-
33 tion of a formal reduction in force, renewals of standard teacher contracts
34 may be for a shorter term, longer term or the same length of term as stated
35 in the current standard teacher contract and at a greater, lesser or equal
36 salary, and shall be uniformly applied to all employees based upon the dis-
37 trict's adopted salary schedule to the extent allowable in section 33-1004E,
38 Idaho Code.

39 (a) Contracts issued pursuant to this section shall be issued on or be-
40 fore the first day of July each year.

41 (b) At the discretion of the board, the district may issue letters of
42 intent for employment for the next ensuing school year to renewable
43 contract status employees during May of each school year. Such let-
44 ter of intent shall not state a specific duration of the contract or
45 salary/benefits term for the next ensuing school year.

46 (c) Unless otherwise negotiated and ratified by both parties pursuant
47 to section 33-1271 et seq., Idaho Code, standard teacher renewals for
48 terms shorter in length than that stated in the current standard con-
49 tract of renewable certificated employees, should be considered and im-
50 plemented only after the district has determined that the salary-based

1 apportionment reimbursement that it estimates it will receive for the
2 ensuing school year is less than the sum the district would otherwise be
3 paying for salaries for certificated professional employees.

4 (4) Nothing in this section shall prevent the board of trustees from of-
5 fering a renewed contract increasing the salary of any certificated person,
6 or from reassigning an administrative employee to a nonadministrative posi-
7 tion with appropriate reduction of salary from the preexisting salary level.
8 In the event the board of trustees reassigns an administrative employee to a
9 nonadministrative position, the board shall give written notice to the em-
10 ployee that contains a statement of the reasons for the reassignment. The
11 employee, upon written request to the board, shall be entitled to an informal
12 review of that decision. The process and procedure for the informal review
13 shall be determined by the local board of trustees.

14 (5) Before a board of trustees can determine not to renew for reasons of
15 an unsatisfactory report of the performance of any certificated person whose
16 contract would otherwise be automatically renewed, such person shall be en-
17 titled to a reasonable period of probation. This period of probation shall
18 be preceded by a written notice from the board of trustees with reasons for
19 such probationary period and with provisions for adequate supervision and
20 evaluation of the person's performance during the probationary period. Such
21 period of probation shall not affect the person's renewable contract status.
22 Consideration of probationary status for certificated personnel is consid-
23 eration of the status of an employee within the meaning of section 74-206,
24 Idaho Code, and may be held in executive session. If the consideration re-
25 >sults in probationary status, the individual on probation shall not be named
26 in the minutes of the meeting. A record of the decision shall be placed in the
27 teacher's personnel file.

28 (6) If the board of trustees takes action to immediately discharge
29 or discharge upon termination of the current contract a certificated per-
30 son whose contract would otherwise be automatically renewed, the action
31 of the board shall be consistent with the procedures specified in section
32 33-513(5), Idaho Code, and, furthermore, the board shall notify the employee
33 in writing whether there is just and reasonable cause not to renew the con-
34 tract or to reduce the salary of the affected employee, and, if so, what
35 reasons it relied upon in that determination.

36 (7) If the board of trustees takes action after the declaration of a fi-
37 nancial emergency pursuant to section 33-522, Idaho Code, and such action is
38 directed at more than one (1) certificated employee, and if mutually agreed
39 to by both parties, a single informal review shall be conducted. Without
40 mutual consent of both parties, the board of trustees shall use the follow-
41 ing procedure to conduct a single due process hearing within sixty-seven
42 (67) days of the declaration of financial emergency pursuant to section
43 33-522(2), Idaho Code, or on or before June 22, whichever shall occur first:

44 (a) The superintendent or any other duly authorized administrative of-
45 ficer of the school district may recommend the change in the length of
46 the term stated in the current contract or reduce the salary of any cer-
47 tificated employee by filing with the board of trustees written notice
48 specifying the purported reasons for such changes.

49 (b) Upon receipt of such notice, the board of trustees, acting through
50 its duly authorized administrative official, shall give the affected

1 employees written notice of the reductions and the recommendation of
2 the change in the length of the term stated in the current contract or
3 the reduction of salary, along with written notice of a hearing be-
4 fore the board of trustees prior to any determination by the board of
5 trustees.

6 (c) The hearing shall be scheduled to take place not less than six (6)
7 days nor more than fourteen (14) days after receipt of the notice by the
8 employees. The date provided for the hearing may be changed by mutual
9 consent.

10 (d) The hearing shall be open to the public.

11 (e) All testimony at the hearing shall be given under oath or affirma-
12 tion. Any member of the board, or the clerk of the board of trustees, may
13 administer oaths to witnesses or affirmations by witnesses.

14 (f) The employees may be represented by legal counsel and/or by a repre-
15 sentative of a local or state education association.

16 (g) The chairman of the board of trustees or the designee of the chair-
17 man shall conduct the hearing.

18 (h) The board of trustees shall cause an electronic record of the hear-
19 ing to be made or shall employ a competent reporter to take stenographic
20 or stenotype notes of all the testimony at the hearing. A transcript of
21 the hearing shall be provided at cost by the board of trustees upon re-
22 quest of the employee.

23 (i) At the hearing, the superintendent or other duly authorized admin-
24 istrative officer shall present evidence to substantiate the reduction
25 contained in such notice.

26 (j) The employees may produce evidence to refute the reduction. Any
27 witness presented by the superintendent or by the employees shall be
28 subject to cross-examination. The board of trustees may also examine
29 witnesses and be represented by counsel.

30 (k) The affected employees may file written briefs and arguments with
31 the board of trustees within three (3) days after the close of the hear-
32 ing or such other time as may be agreed upon by the affected employees
33 and the board of trustees.

34 (l) Within seven (7) days following the close of the hearing, the board
35 of trustees shall determine and, acting through its duly authorized ad-
36 ministrative official, shall notify the employees in writing whether
37 the evidence presented at the hearing established the need for the ac-
38 tion taken.

39 The due process hearing pursuant to this subsection shall not be required if
40 the board of trustees and the local education association reach an agreement
41 on issues agreed upon pursuant to section 33-522(3), Idaho Code.

42 (8) If the board of trustees, for reasons other than unsatisfactory
43 service, for the ensuing contract year, determines to change the length of
44 the term stated in the current contract, reduce the salary or not renew the
45 contract of a certificated person whose contract would otherwise be automat-
46 ically renewed, nothing herein shall require a probationary period.

47 (9) If the board of trustees, for reasons other than unsatisfactory
48 service, for the ensuing contract year, determines to change the length
49 of the term stated in the current contract or reduce the salary of a cer-
50 tificated person whose contract would otherwise be automatically renewed,

nothing herein shall require any individualized due process proceeding. In such circumstance, the board shall hold a single informal review for all impacted employees. The process and procedure for the single informal review shall be determined by the local board of trustees.

SECTION 4. That Section 33-911, Idaho Code, be, and the same is hereby amended to read as follows:

33-911. SCHOOL DISTRICT FACILITIES FUND. (1) There is hereby created in the state treasury the school district facilities fund. The fund shall consist of moneys provided pursuant to sections 57-811, 63-3638, and 67-7434, Idaho Code, and any legislative transfers or appropriations. Interest earned from the investment of moneys in the fund shall be returned to the fund. Moneys in the fund are hereby continuously appropriated for the purposes stated in this section.

(2) The moneys in the fund shall be distributed by the state controller to the state department of education by August 1 each year for the purpose of construction or renovation of school facilities. The moneys shall be distributed by the state department of education to each school district, as defined in section 33-1001~~(21)~~(23), Idaho Code, first as provided in subsection (7) of this section and then on a per-pupil basis using the average daily attendance calculation provided in section 33-1003A, Idaho Code, for each student in kindergarten through grade 12 at physical facilities that are part of and on school grounds of the school district in which the student is enrolled with verification, as needed, by the office of the state board of education. Upon formal approval by the state board of education, a school district may receive an exemption to the physical facility requirement pursuant to this subsection if the student would have attended a physical facility in the school district if not for a stated emergency. The state department of education shall transfer the moneys by no later than August 31 each year to each school district. Such moneys shall be used in place of property tax levy moneys and shall be expended by a school district for one (1) or more of the purposes set forth in paragraphs (a) through (f) of this subsection. Moneys in the fund must be used by a school district in the following order of priority:

(a) Payment of existing school bonds authorized pursuant to chapter 11, title 33, Idaho Code, and issued prior to July 1, 2025;

(b) Payments required pursuant to section 33-909, Idaho Code;

(c) Payment of existing school bonds authorized pursuant to chapter 11, title 33, Idaho Code, and issued on or after July 1, 2025;

(d) Payment of supplemental school levies authorized pursuant to section 33-802, Idaho Code, excluding indefinite term supplemental levies described in section 33-802(5), Idaho Code;

(e) Payment of school plant facility levies authorized pursuant to sections 33-804 and 33-804A, Idaho Code; and

(f) Any moneys that remain following the payments provided in paragraphs (a) through (e) of this subsection may be: used for construction of a new school facility, renovation, or maintenance needs; used to secure and make payments on a new school facilities bond; or saved in a reserve account by the school district for future school facility needs. Uses of funds shall include regular and routine facilities

1 maintenance, including preventive maintenance, building repairs, and
 2 building security, and periodic major facilities projects that involve
 3 planning, design, construction, renovation, retrofitting, and replac-
 4 ing of buildings and building systems, components, and features, as
 5 well as site acquisition, site improvements, and new construction.

6 (3) The amount of moneys received by a school district pursuant to this
 7 section must be deducted from a school levy that would otherwise have been
 8 paid by property taxpayers. Such moneys may not be duplicated by the collec-
 9 tion of property tax, and no property taxes may be collected in order to make
 10 extra payments on expenses described in subsection (2) of this section in ex-
 11 cess of required amounts.

12 (4) Each school district shall identify the amount received in the cur-
 13 rent year pursuant to this section in the certification of its budget in ac-
 14 cordance with section 63-803, Idaho Code. Said amount must be subtracted
 15 from the amount to be levied. The amount of moneys thereby saved from being
 16 collected by a property tax levy shall be reported on each property tax no-
 17 tice pursuant to section 63-902, Idaho Code.

18 (5) Each school district shall report annually to the state department
 19 of education, in a manner prescribed by it, on the expenditure of moneys it
 20 has received pursuant to this section. The state department of education
 21 shall present the reports to the legislature each January.

22 (6) For the purposes of this section, the Idaho school for the deaf and
 23 the blind shall be considered a school district and shall receive a distribu-
 24 tion based on the average daily attendance of the school.

25 (7) (a) For state fiscal year 2025 only, any school district that would
 26 have received support from the bond levy equalization support program
 27 for a qualified bond passed prior to January 1, 2024, and for which prop-
 28 erty taxes were levied in property tax year 2023 pursuant to the amount
 29 intended by the bond shall receive a distribution of funds from the dis-
 30 tribution provided under subsection (2) of this section of at least as
 31 much as would have been provided through bond levy equalization support
 32 on July 1, 2024.

33 (b) For state fiscal year 2026 only, any school district that would have
 34 received support from the bond levy equalization support program for a
 35 qualified bond passed prior to January 1, 2024, and for which property
 36 taxes were levied in property tax year 2024 pursuant to the amount in-
 37 tended by the bond shall receive a distribution of funds from the dis-
 38 tribution provided under subsection (2) of this section of at least as
 39 much as would have been provided through bond levy equalization support
 40 on July 1, 2025.

41 (c) The state department of education may adjust distributions for re-
 42 maining districts proportionally as necessary pursuant to this para-
 43 graph. On and after July 1, 2024, school districts may use funds pro-
 44 vided in this section and section 33-913, Idaho Code, to offset the bond
 45 levy equalization support.

46 SECTION 5. That Section 33-915, Idaho Code, be, and the same is hereby
 47 amended to read as follows:

48 33-915. FIXED DISTRIBUTION -- SCHOOL MODERNIZATION FACILITIES FUND.
 49 (1) The state department of education shall establish a fixed distribution

1 of funds to be made available for voluntary election to each school district
2 subject to the conditions in this section.

3 (a) The distribution shall be calculated in state fiscal year 2025
4 for each school district, as defined in section 33-1001~~(21)~~(23), Idaho
5 Code, that is in operation as of July 1, 2024.

6 (b) The distribution shall be calculated by multiplying the following
7 two (2) factors, both of which shall be based on the most recent data
8 available in the state fiscal year coinciding with the distribution
9 calculation:

10 (i) Calculate the per-pupil amount, using the average daily at-
11 tendance calculation provided in section 33-1003A, Idaho Code,
12 for each student in kindergarten through grade 12 at physical
13 facilities that are part of and on school grounds of the school
14 district in which the student is enrolled with verification, as
15 needed, by the office of the state board of education. Upon formal
16 approval by the state board of education, a school district may re-
17 ceive an exemption to the physical facility requirement pursuant
18 to this subsection if the student would have attended a physical
19 facility in the school district if not for a stated emergency; and
20 (ii) Calculate, together with the Idaho state building authority,
21 the total amount that a bond issuance would generate, based on the
22 amount established in section 63-3638(19), Idaho Code.

23 (c) In no case shall the amount awarded to any school district be less
24 than twenty-five thousand dollars (\$25,000) over the ten (10) year pe-
25 riod.

26 (d) In no case shall the amount awarded to any school district with an
27 active charter district maintenance and operation levy pursuant to sec-
28 tion 33-802(6), Idaho Code, or a charter district supplemental mainte-
29 nance and operation levy pursuant to section 33-802(4), Idaho Code, ex-
30 ceed forty million dollars (\$40,000,000) over the ten (10) year period.
31 Excess funds shall be distributed proportionately according to the
32 factors established in paragraph (b) of this subsection to remaining
33 school districts that received initial allocations below forty million
34 dollars (\$40,000,000). Any districts receiving reallocations under
35 this paragraph shall not exceed forty million dollars (\$40,000,000).

36 (e) For the purposes of this section, the Idaho school for the deaf and
37 the blind shall be considered a school district and shall receive a dis-
38 tribution based on the average daily attendance of the school.

39 (2) The provisions of this section shall be null, void, and of no force
40 and effect on and after June 30, 2034.

41 SECTION 6. That Section 33-1201, Idaho Code, be, and the same is hereby
42 amended to read as follows:

43 33-1201. CERTIFICATE REQUIRED. (1) Every person who is employed to
44 serve in any elementary or secondary school in the capacity of teacher,
45 supervisor, administrator, ~~education specialist, school nurse or school~~
46 ~~librarian or pupil service staff~~ shall be required to have and to hold a
47 certificate issued under authority of the state board of education, valid
48 for the service being rendered; except that the state board of education may
49 authorize endorsement for use in Idaho, for not more than five (5) years,

1 certificates valid in other states when the qualifications therefor are not
2 lower than those required for an Idaho certificate.

3 (2) No certificate shall be required of a student who is attending any
4 teacher-training institution and serving as a practice teacher or teacher
5 apprentice in a state board of education-approved registered apprenticeship
6 program for teachers in a classroom under the supervision of a certificated
7 teacher and who is jointly assigned by such teacher-training institution and
8 the governing board of a district or a public institution to perform practice
9 teaching.

10 (3) A student, while serving in a practicum, internship, apprentice-
11 ship, or student teaching position under the supervision of a person cer-
12 tificated pursuant to this section, shall be accorded the same liability in-
13 surance coverage by the school district being served as that accorded such
14 certificated person in the same district, and such student shall comply with
15 all rules and regulations of the school district or public institution while
16 serving in such a capacity.

17 SECTION 7. That Section 33-1201A, Idaho Code, be, and the same is hereby
18 amended to read as follows:

19 33-1201A. IDAHO PROFESSIONAL ENDORSEMENT -- ELIGIBILITY. (1) Any in-
20 structional staff employee or any pupil service staff employee will receive
21 mentoring as outlined in such employee's individualized professional learn-
22 ing plan during the initial three (3) years of holding such certificate.
23 Upon holding a certificate for three (3) years, any such instructional staff
24 or pupil service staff employee may apply for an Idaho professional endorse-
25 ment. Upon holding a professional endorsement for five (5) years or more,
26 any such instructional staff or pupil service staff employee may apply for an
27 Idaho advanced professional endorsement. Individuals who hold an instruc-
28 tional staff certificate and a pupil service staff certificate shall have
29 their experience based on the overall years of experience if held consecu-
30 tively or the certificate they have held the longest if dually certificated.

31 (2) To be eligible for an Idaho professional endorsement, the instruc-
32 tional staff or pupil service staff employee must:

33 (a) Have held a certificate and been employed in a public school for at
34 least three (3) years or have completed a state board of education-ap-
35 proved interim certificate of three (3) years or longer;

36 (b) Show they met the professional compensation rung performance cri-
37 teria for two (2) of the three (3) previous years or the third year;

38 (c) Have a written recommendation from the employing school district;
39 and

40 (d) Have an annual individualized professional learning plan developed
41 in conjunction with the employee's school district supervisor.

42 Instructional staff employees may provide additional evidence demonstrat-
43 ing effective teaching that may be considered in exceptional cases for
44 purposes of determining proficiency and student achievement in the event
45 required standards for professional endorsement are not met. Pupil service
46 staff employees may provide additional evidence demonstrating effective
47 student achievement or success that may be considered in exceptional cases
48 for purposes of determining proficiency and student achievement or success
49 in the event required standards for professional endorsement are not met.

1 (3) To be eligible for an Idaho advanced professional endorsement, the
2 instructional staff or pupil service staff employee must:

3 (a) Have held a renewable certificate and been employed in a public
4 school for at least eight (8) years or more or have completed a state
5 board of education-approved interim certificate of three (3) years or
6 longer and held a renewable certificate and been employed in a public
7 school for five (5) years or more;

8 (b) Show they met the professional compensation rung performance cri-
9 teria for four (4) of the five (5) previous years or the third, fourth,
10 and fifth year;

11 (c) During three (3) of the previous five (5) years, have served in
12 an additional building or district leadership role in an Idaho public
13 school, including but not limited to:

14 (i) Instructional specialist or instructional coach;

15 (ii) Mentor;

16 (iii) Curriculum or assessment committee member;

17 (iv) Team or committee leadership position;

18 (v) Data coach; or

19 (vi) Other leadership positions identified by the school dis-
20 trict;

21 (d) Have a written recommendation from the employing school district;

22 (e) Have an annual individualized professional learning plan developed
23 in conjunction with the employee's supervisor and a self-evaluation;
24 and

25 (f) (i) Effective July 1, 2020, through June 30, 2021, show they
26 have met the advanced professional compensation rung performance
27 criteria for three (3) of the five (5) previous years or the fifth
28 year;

29 (ii) Effective July 1, 2021, through June 30, 2022, show they have
30 met the advanced professional compensation rung performance cri-
31 teria for three (3) of the five (5) previous years or the fourth and
32 fifth year; or

33 (iii) Effective July 1, 2022, show they have met the advanced pro-
34 fessional compensation rung performance criteria for three (3) of
35 the five (5) previous years.

36 Instructional staff employees may provide additional evidence demon-
37 strating effective teaching that may be considered in exceptional cases
38 for purposes of determining proficiency and student achievement in the
39 event required standards for the advanced professional endorsement are not
40 met. Pupil service staff employees may provide additional evidence demon-
41 strating effective student achievement or success that may be considered
42 in exceptional cases for purposes of determining proficiency and student
43 achievement or success in the event required standards for the advanced pro-
44 fessional endorsement are not met.

45 (4) Instructional staff and pupil service staff who have been certified
46 in another state shall be eligible for the professional endorsement if they:

47 (a) Have a written recommendation from the employing school district;

48 (b) Have worked in a certificated position in a compact-member state
49 other than Idaho pursuant to section 33-4104, Idaho Code; and

(c) Would have been eligible to work in a certificated position in an Idaho public school based on that certification for three (3) to eight (8) years.

(5) Instructional staff and pupil service staff who have been certified in another state shall be eligible for the advanced professional endorsement if they:

(a) Have a written recommendation from the employing school district;

(b) Have worked in a certificated position in a compact-member state other than Idaho pursuant to section 33-4104, Idaho Code; and

(c) Would have been eligible to work in a certificated position in an Idaho public school based on that certification for nine (9) years or more.

(6) Instructional staff and pupil service staff who have worked in an accredited private school and maintained their instructional or pupil service staff certification may use their years of private school work experience to meet the years of experience requirements for the professional and advanced professional endorsement. Such staff may provide additional evidence demonstrating effective teaching that may be considered in exceptional cases for purposes of determining proficiency and student achievement requirements for professional and advanced professional eligibility criteria.

(7) Individuals holding a professional endorsement or an advanced professional endorsement will be annually evaluated in at least two (2) domains in the state evaluation framework approved by the state board of education. All other instructional or pupil service staff employees must be evaluated across all domains in the evaluation framework. Ratings in the domains described in section 33-1001-~~(20) (b)~~ (22) (b), Idaho Code, are required as part of the advanced professional compensation rung performance criteria.

(8) The state board of education shall promulgate rules implementing the provisions of this section.

(9) For the purposes of this section:

(a) "Certificate" means an Idaho instructional certificate, pupil service staff certificate, or out-of-state educator certificate that meets the requirements for reciprocity under rules promulgated by the state board of education;

(b) In conjunction with the Idaho evaluation framework, "individualized professional learning plan" means an individualized professional development plan based on the Idaho framework for teaching evaluation and includes, at a minimum, identified interventions based on the individual's strengths and areas of needed growth, how the individual will set student achievement and growth goals, and areas of identified professional development and mentoring that target continuous improvement in professional areas, future student achievement, and school building or district culture;

(c) "Instructional staff" means those involved in the direct instruction of a student or group of students and who hold a certificate issued under section 33-1201, Idaho Code;

(d) "Pupil service staff" means those who provide services to students but are not involved in direct instruction of those students and who hold a certificate issued under section 33-1201, Idaho Code; and

(e) "School district" means a school district or a public charter school.

SECTION 8. That Section 33-1204, Idaho Code, be, and the same is hereby amended to read as follows:

33-1204. VALIDITY, DURATION, RENEWAL, AND LAPSE OF CERTIFICATES -- LIFETIME INSTRUCTIONAL AND LIFETIME ADMINISTRATOR CERTIFICATES. (1) The state board of education shall by rule provide for the validity, duration, renewal, and lapse of certificates. In addition, rules promulgated by the state board of education shall set forth criteria for renewal of administrator certificates, which shall include a requirement that administrator certificate holders must complete a course consisting of a minimum of three (3) semester credits in the statewide framework for teachers' evaluations. Such course shall include a laboratory component.

(2) If the holder of a certificate who has undergone a criminal history check pursuant to district policy as provided in section 33-512(15), Idaho Code, is found to have been convicted of any felony crime enumerated in section 33-1208, Idaho Code, the certificate shall be revoked or suspended as provided in this chapter.

(3) The state board of education may by rule require professional development credits as a condition of certificate renewal, provided that such rule must recognize providing instruction in a professional development course or in a course at an institution of higher education as an option to complete required credits.

(4) The state board of education may, subject to legislative approval, establish rules to provide for the issuance of a lifetime instructional certificate, a pupil service staff certificate, or a lifetime administrator certificate to any certificated ~~teacher or administrator~~ staff who has accumulated at least twenty-five (25) years of combined ~~teaching and administration~~ certificated experience in an Idaho school district, a public charter school in Idaho, or an equivalent public school system in another jurisdiction. Experience in ~~either teaching or administration~~ any certificated position may be applied toward the total required years for ~~either the~~ certificate. Such certificate shall:

(a) Be issued at no cost to the ~~teacher or administrator~~ Idaho certificated individual;

(b) Not require any ongoing reporting, maintenance, or professional development from the ~~teacher or administrator~~ Idaho certificated individual; and

(c) Be valid for the duration of the ~~teacher's or administrator's~~ Idaho certificated individual's lifetime, provided that the ~~teacher or administrator~~ Idaho certificated individual does not engage in any professional misconduct that would warrant revocation pursuant to section 33-1208, Idaho Code.

SECTION 9. That Section 33-1636, Idaho Code, be, and the same is hereby amended to read as follows:

33-1636. INNOVATION CLASSROOMS. (1) For purposes of this section:

(a) "Alternative curriculum" means a curriculum in one (1) or more subject areas that is different than the curriculum in such area or areas offered by a school district. An alternative curriculum may encompass one (1) or more subject areas but must include, at a minimum, an alternative curriculum in mathematics, history, English language arts, or science.

(b) "Innovation classroom" means a classroom in which an alternative curriculum is offered.

(c) "Requesting party" means a person or group of persons that requests an innovation classroom agreement from a school district. Such person or group must include:

(i) A certified teacher or teachers in a school district; or

(ii) A parent or parents whose child or children attend school in a school district.

(2) A school district may enter into an innovation classroom agreement with a requesting party if the requesting party represents a group of students that is equal to or greater than the average class size in the school. The school district must indicate willingness or nonwillingness to enter into negotiation within sixty (60) days of the receipt of the request.

(3) An innovation classroom agreement must include:

(a) The name of any teacher or other certificated staff member who will be working in the innovation classroom. Any such teacher must be agreed upon by the school district and the parents of the students who will be receiving instruction in the innovation classroom;

(b) The names of the students participating in the innovation classroom;

(c) A description of how and where the innovation classroom's instruction will take place and whether instruction will include in-person, hybrid, or virtual components. If requested, the school district must provide a classroom for the innovation classroom;

(d) Growth criteria or other measures of student learning, such as those found in section 33-1001-~~(18)~~ (19), Idaho Code;

(e) The alternative curriculum and instructional materials to be used in the innovation classroom. The parents of the participating students must agree to the alternative curriculum, and the school district will determine whether the alternative curriculum meets state standards and recommend ways to supplement the alternative curriculum, if applicable;

(f) A description of an innovation classroom student's access to or use of the school district's transportation, playground, cafeteria, after-school activities, special education, and other services or facilities; and

(g) The date upon which the innovation classroom will start.

(4) Students in an innovation classroom may use transportation services offered by the school district if the schedule of the innovation classroom is consistent with the school district's schedule or if the parties provide for transportation services in the innovation classroom agreement.

(5) For purposes of compensation, any teacher or other certificated staff member working in an innovation classroom will be an employee of the school district and will be entitled to receive or participate in the public

1 employee retirement system of Idaho, federal social security, unemployment
2 insurance, worker's compensation, health insurance, and other benefits and
3 compensation to the same extent as other employees in the school district.

4 (6) Students enrolled in an innovation classroom will be enrolled in
5 the school district for the purpose of calculating educational support pro-
6 gram funds apportioned to the school district. The school district must ap-
7 portion funds for instructional use in an innovation classroom in an amount
8 substantially similar to funds apportioned for instruction of students at
9 the same grade level who do not participate in the innovation classroom.

10 (7) Students participating in an innovation classroom will not be in-
11 cluded in the public school accountability results for the school district
12 unless the school district so desires or such inclusion is required by appli-
13 cable law or rule. The school district will not be responsible for services
14 for participating students, except those services described in the innova-
15 tion classroom agreement.

16 (8) Students in an innovation classroom must take any required state
17 testing.

18 (9) Innovation classrooms must:

19 (a) Comply with the conditions or procedures established in the innova-
20 tion classroom agreement; and

21 (b) Comply with applicable laws, including state, federal, and local
22 laws prohibiting discrimination and laws governing safety, including
23 but not limited to sections 33-122 and 33-130, Idaho Code.

24 SECTION 10. An emergency existing therefor, which emergency is hereby
25 declared to exist, this act shall be in full force and effect on and after
26 July 1, 2026.